E3 Cross-border transfers and works councils

Generated from the same content files as the app. Each module lists its roadmap months. Solutions are in the appendix.

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Track E: Data protection and governance

The law and the frameworks that govern people data, for the engineer who builds the platform.

E3 Cross-border transfers and works councils

Roadmap: EY Talent Data Strategy role; Current work. Restricted transfers and the three-step test, choosing a transfer mechanism with a risk assessment, and consulting works councils before people analytics or AI.

E3-L1 Restricted transfers, when people data leaves the UK

Concept

Talent data rarely stays in one country. A shared service centre runs payroll, a vendor hosts the learning platform, a group company abroad builds the dashboards. UK GDPR Chapter V controls these flows as **restricted transfers**.

Since the ICO's January 2026 guidance, a **three-step test** tells you whether a flow is restricted. Answer yes to all three and it is:

1. Does UK GDPR apply to your processing of the data?
2. Do you **initiate** the transfer, by sending the data or by making it available to someone outside the UK?
3. Is the receiver a **separate legal person**, such as another company in your group?

A UK branch sending data to its own overseas head office fails step 3, so it is not restricted. A UK company sending data to a sister company in India is restricted, even inside one group.

A restricted transfer needs one of three routes:

- **Adequacy regulations**: UK law approves the destination. Transfers to the EEA countries are treated as approved.
- **Appropriate safeguards**: a contract such as the International Data Transfer Agreement (**IDTA**), plus a check that protection is "not materially lower" than in the UK. Lesson E3-L2 covers how to choose.
- **Exceptions**: narrow, for occasional transfers. Explicit consent rarely works for employees, for the reason lesson E1-L2 gives.

The **Data (Use and Access) Act 2025** set the "not materially lower" standard. It took effect on 5 February 2026.

The direction matters. The EU's adequacy decision for the UK, renewed to 27 December 2031, covers data flowing into the UK from the EU. It says nothing about data you send out.

Why it matters

A UK HR team gave a sister company in another country read access to a performance dashboard "so they could help". Nobody saw it as a transfer, because no file moved. An audit found 9,000 employee records available to a separate legal entity with no contract in place. Access was withdrawn for three months while legal put an agreement in place.

Worked example: weak code

```
1  # Data flows, talent platform
2  - flow: performance dashboard shared with group analytics team abroad
1    transfer: no, nothing is copied
4  - flow: payroll extract to UK branch office in Dublin
2    transfer: no, same company
```

1. **Line 3.** Making data available abroad is a transfer. Access counts, not only copies.
2. **Line 5.** Dublin is outside the UK. Ask step 3 explicitly: is the receiver the same legal person?

Worked example: strong code

```
1  # Data flows, talent platform
2  - flow: performance dashboard shared with group analytics team abroad
3    uk_gdpr_applies: yes
1    initiated_by_us: yes, we grant access
5    separate_legal_person: yes, a sister company
2    restricted: yes
7    route: to be chosen, see E3-L2
8  - flow: payroll extract to our own branch office in Dublin
3    separate_legal_person: no, same company
10   restricted: no
```

1. **Line 4.** Granting access initiates the transfer.
2. **Line 6.** Three yeses make a restricted transfer. Record each answer, not only the verdict.
3. **Line 9.** A branch is the same legal person, so step 3 fails.

Run the three-step test on every flow, access included. Record each answer, then pick a route: adequacy, safeguards or a narrow exception.

Recap card

- **The ICO's three-step test** UK GDPR applies, you initiate a transfer outside the UK, and the receiver is a separate legal person. Three yeses make it restricted.
- **Access or copies?** Making data available abroad initiates a transfer. No copy is needed.
- **Three routes for a restricted transfer** Adequacy regulations, appropriate safeguards such as the IDTA, or a narrow exception.
- **EU adequacy for the UK** Renewed to 27 December 2031. It covers data coming into the UK, not data you send out.

Practice

Exercise 1. Multiple choice (level 1)

Which flow is a restricted transfer under UK GDPR?

- a) A UK company sends appraisal data to its sister company in India
- b) A UK company sends appraisal data to its own branch office in India
- c) A UK company moves appraisal data between two UK data centres
- d) A UK company deletes appraisal data after the retention period

Exercise 2. Multiple choice (level 2)

A UK team gives a group company in Singapore read access to a talent dashboard. No file is copied. Is this a restricted transfer?

- a) Yes
- b) No

Why?

- r1) Making data available to a separate legal person abroad initiates a transfer, even without a copy.
- r2) Any data viewed from abroad is a transfer, whoever the viewer works for.

Exercise 3. Fill the gap (level 2)

Complete the three routes for a restricted transfer.

```
1. _____(1) regulations: the UK has recognised the destination.
2. Appropriate _____(2), such as the IDTA, with protection not materially
   lower than in the UK.
3. _____(3), narrow and for occasional transfers.
```

Exercise 4. Put in order (level 3)

Put the steps for a new talent data flow in order.

- Check that UK GDPR applies to the processing
- Record each answer and the route in the data flow register
- Choose a route: adequacy, safeguards or an exception
- Check whether you send the data or make it available outside the UK
- Check whether the receiver is a separate legal person

Exercise 5. Architecture design (level 4)

A group analytics team abroad asks for the UK performance data. Decide how to handle the request.

Options: Run the three-step test on the flow, access included, Check only whether files will be copied abroad.

1. First step
2. The receiver
3. If the transfer is restricted

Sources

- The ICO updated its international transfers guidance on 15 January 2026, with a three-step test: UK GDPR applies, the sender initiates a transfer outside the UK, and the receiver is a separate legal person. A UK branch sending data to its overseas head office is not a restricted transfer. (search-only: Commentary by Kennedys, Freshfields, McDermott Will & Emery and White & Case on the ICO guidance, seen through search results, November 2026. ico.org.uk was not reachable from the build environment.)
- Section 85 and Schedule 7 of the Data (Use and Access) Act 2025 replaced Article 45 with Articles 45A and 45B and set the data protection test: protection 'not materially lower' than under UK GDPR. In force from 5 February 2026 (SI 2026/82). (verified: https://www.legislation.gov.uk/ukpga/2025/18/schedule/7 and https://www.legislation.gov.uk/ukpga/2025/18/section/85, checked 7 November 2026.)
- Transfers to an EEA state are treated as approved by regulations under Article 45A (DPA 2018 Schedule 21, paragraphs 4 and 5). (verified: https://www.legislation.gov.uk/ukpga/2018/12/schedule/21/paragraph/5, checked 7 November 2026.)

- The European Commission renewed its adequacy decisions for the UK on 19 December 2025, until 27 December 2031. (search-only: Hunton, Freeths, RPC and Computer Weekly reports, seen through search results, November 2026.)

E3-L2 Choosing a transfer mechanism and the transfer risk assessment

Concept

Once a flow is a restricted transfer, pick its route in a fixed order.

1. Adequacy first. If UK adequacy regulations cover the destination, the transfer can go ahead with no extra contract. The UK covers the EEA countries, among others. For the United States, the **UK Extension to the EU-US Data Privacy Framework**, the "data bridge", covers only US organisations certified under it.

2. Appropriate safeguards next. Three are common for talent data:

- the **IDTA**, the UK's own contract;
- the **UK Addendum**, which extends the EU standard contractual clauses to UK data. It suits a group that already signs the EU clauses;
- **binding corporate rules**, approved rules for transfers inside a group.

A contract alone is not enough. With a safeguard you complete a **transfer risk assessment** (TRA). The exporter, acting reasonably and proportionately, must judge that protection after the transfer is "not materially lower" than in the UK. UK law now calls this the **data protection test**. If the TRA fails, add protections, such as pseudonymised data or keys kept in the UK, or do not transfer.

3. Exceptions last. Article 49 lists them. Its last-resort exception covers only transfers that are not repetitive, so never a nightly pipeline.

Record "not yet assessed" as its own state. A TRA that is missing is not a TRA that passed, and it is not one that failed. In code, keep `None` apart from `False`. Lesson E1-L3 made the same point about missing register fields.

Why it matters

A firm signed the IDTA with its offshore analytics vendor and filed it. Two years later a regulator asked for the risk assessment behind it. There was none. The contract was valid, but the firm could not show the transfer met the test, and it had to pause the feed until a TRA was done.

Worked example: weak code

```
1 def can_transfer(adequate, safeguard, tra_passed):
2     if adequate or safeguard:
3         return True
4     return False
```

1. **Line 1.** A yes or no hides which route applied, so the register cannot record it.
2. **Line 2.** A signed safeguard alone passes. The TRA result is never read.

Worked example: strong code

```
1  SAFEGUARDS = frozenset({"IDTA", "Addendum", "BCR"})
2
3
4  def transfer_route(adequate: bool, safeguard: str | None, tra_passed:
     bool | None) -> str:
5      """The route for a restricted transfer: adequacy, safeguards or
     stop."""
1      if adequate:
7          return "adequacy"
8      if safeguard is None:
9          return "stop"
10     if safeguard not in SAFEGUARDS:
11         raise ValueError(f"unknown safeguard: {safeguard}")
2      if tra_passed is None:
13         raise ValueError("complete a transfer risk assessment first")
3      return "safeguards" if tra_passed else "stop"
```

1. **Line 6.** Adequacy comes first and needs no TRA.
2. **Line 12.** Not yet assessed is its own state. It fails loudly instead of passing quietly.
3. **Line 14.** A failed TRA stops the transfer until protections are added.

Adequacy first, then a safeguard with a TRA that passes, then a narrow exception. Keep "not assessed" apart from "failed".

Recap card

- **Order of routes** Adequacy first, then a safeguard with a transfer risk assessment, then a narrow exception.
- **Common safeguards for talent data** The IDTA, the UK Addendum to the EU standard contractual clauses, and binding corporate rules.
- **The data protection test** With a safeguard, the exporter judges, reasonably and proportionately, that protection is not materially lower than in the UK.
- **Missing or failed?** A missing assessment is work not done. Keep `None` apart from `False` in code.

Practice

Exercise 1. Multiple choice (level 1)

Talent data goes to a company in a country covered by UK adequacy regulations. What else does the transfer need?

- a) Nothing more for the transfer itself
- b) An IDTA and a transfer risk assessment
- c) Explicit consent from each employee
- d) Approval from the ICO

Exercise 2. Multiple choice (level 2)

A group already signs the EU standard contractual clauses for its EU offices. Which safeguard fits its UK transfers best?

- a) The UK Addendum
- b) Explicit consent
- c) No safeguard, because the EU clauses cover UK data
- d) An exception for each transfer

Why?

- r1) The Addendum extends the EU clauses the group already uses to UK data.
- r2) The Addendum removes the need for a transfer risk assessment.

Exercise 3. Write the function (level 3)

Write `transfer_route(adequate: bool, safeguard: str | None, tra_passed: bool | None) -> str`.

- If `adequate` is true, return `"adequacy"`.
- Otherwise, if `safeguard` is `None`, return `"stop"`.
- If `safeguard` is not one of `"IDTA"`, `"Addendum"` or `"BCR"`, raise `ValueError`.
- If `tra_passed` is `None`, raise `ValueError`: the assessment is missing.
- Return `"safeguards"` if `tra_passed` is true, otherwise `"stop"`.

What you need to know.

`x is None` is true only for `None`. A falsy test such as `not x` is also true for `False`, `0` and `""`, so it cannot tell "missing" from "failed":

```
score = 0
score is None   # False: a score of 0 exists
not score       # True: 0 is falsy
```

`frozenset` makes a fixed set. `in` checks membership: `"red" in frozenset({"red", "blue"})` is `True`.

Your code must pass these checks:

- Adequacy comes first, whatever the other arguments say.
- A known safeguard with a passed TRA returns "safeguards".
- No safeguard, or a failed TRA, returns "stop".
- Raise ValueError when the TRA is missing. Missing is not the same as failed.
- Raise ValueError for a safeguard that is not IDTA, Addendum or BCR.

Shape of the answer. The reference solution defines these names. Write the bodies yourself.

```python
# Module constant.
SAFEGUARDS = ...

# The route for a restricted transfer.
def transfer_route(
    adequate: bool,
    safeguard: str | None,
    tra_passed: bool | None,
) -> str: ...
```

Starter code:

```python
def transfer_route(adequate, safeguard, tra_passed):
    if adequate or safeguard:
        return "adequacy"
    return "stop"
```

Exercise 4. Put in order (level 3)

Talent data will go to an analytics vendor in a country without UK adequacy. Put the steps in order.

- Choose a safeguard, such as the IDTA
- Complete the transfer risk assessment against the data protection test
- Start the transfer and record the route
- Add protections the assessment calls for, such as pseudonymised identifiers
- Confirm no adequacy regulations cover the destination

Exercise 5. Architecture design (level 4)

Set the transfer policy for a nightly feed of performance ratings to a group company in a country without adequacy.

Options: Binding corporate rules or the IDTA between the two companies, An exception, because the group needs the data.

1. Mechanism
2. Assessment
3. Data sent

Sources

- Under Article 46(1A), as inserted by the Data (Use and Access) Act 2025, a transfer under appropriate safeguards needs the controller or processor, acting reasonably and proportionately, to consider that the data protection test is met. (verified: https://www.legislation.gov.uk/ukpga/2025/18/schedule/7, checked 7 November 2026.)
- With the IDTA or the UK Addendum, the exporter completes a transfer risk assessment. (search-only: Kennedys and Freshfields commentary on the ICO's January 2026 guidance, seen through search results, November 2026. ico.org.uk refused automated requests.)
- The UK Extension to the EU-US Data Privacy Framework, the 'data bridge', covers transfers only to US organisations on the Data Privacy Framework List as participating in the UK Extension. In force 12 October 2023. (verified: https://www.legislation.gov.uk/uksi/2023/1028/made, regulations 1(2) and 3(2)(a), checked 7 November 2026.)
- Binding corporate rules are an appropriate safeguard under Article 46(2)(b). Article 49's last-resort exception applies only if the transfer is not repetitive and concerns a limited number of data subjects. (verified: https://www.legislation.gov.uk/eur/2016/679/article/46 and https://www.legislation.gov.uk/eur/2016/679/article/49, checked 7 November 2026.)

E3-L3 Works councils and consultation before people analytics or AI

Concept

A people analytics tool can be lawful under UK GDPR and still stall at go-live, because nobody consulted the people it watches. Consultation duties come from employment law, not data protection law, and they differ by country.

United Kingdom. There is no general works council duty. Three sources still apply:

- The ICO's **monitoring workers** guidance (October 2023) expects you to consult workers and their representatives before monitoring, unless there is a good reason not to.
- UK GDPR **Article 35(9)** asks you, where appropriate, to seek the views of data subjects or their representatives in a DPIA.
- Recognised trade unions, collective agreements, or an agreement under the **Information and Consultation of Employees Regulations 2004** can set formal duties. In Great Britain, since 6 April 2020, 2% of employees, at least 15, can request such an agreement in a firm of 50 or more.

EU countries go further. A few examples:

- **Germany**: the works council has a **co-determination** right over technical systems designed to monitor behaviour or performance. Courts read "designed" as "able", so most HR software is in scope.
- **France**: the works council (CSE) must be consulted before new technology goes live. Courts have suspended AI tools deployed early.
- **Netherlands**: the works council has a **consent right** over personnel monitoring systems and rules on employee data.

The **EU AI Act** adds a duty for employers to inform workers' representatives before using a **high-risk AI system**, which includes most hiring and promotion tools. The 2026 amendments moved those high-risk obligations to 2 December 2027. National duties apply now.

Treat this as a map, not advice. Ask the employment lawyers in each country before go-live.

Why it matters

A firm rolled out an attrition-risk model to managers in France and Germany on the same day as the UK. In Germany, the works council had not agreed to it. In France, the works council had not given its opinion. Both sites switched the tool off within weeks. The UK pilot, where the team had consulted staff and recorded their views in the DPIA, kept running.

Worked example: weak code

```
❶ def needs_consultation(country):
```

```
    return country in ["DE", "FR", "NL"]
```

1. **Line 1.** A yes or no does not say which body to consult.
2. **Line 2.** Hard-coded law ignores what the tool does, and says the UK never needs consultation.

Worked example: strong code

```
CONSULTATION_RULES = {
    "DE": {"body": "works council", "triggers": {"monitoring", "high_risk_ai"}},
    "FR": {"body": "CSE", "triggers": {"new_technology", "monitoring", "high_risk_ai"}},
    "UK": {"body": "workers and representatives", "triggers": {"monitoring"}},
}


def consult_before_go_live(sites: list[str], features: set[str]) -> list[tuple[str, str]]:
    """Each site's body to consult, from rules the employment lawyers maintain."""
    plan = []
    for country in sorted(set(sites)):
        rule = CONSULTATION_RULES.get(country)
        if rule is None:
            raise ValueError(f"no consultation rule for {country}: ask the lawyers")
        if rule["triggers"] & features:
            plan.append((country, rule["body"]))
    return plan
```

1. **Line 1.** The rules are data the lawyers own. In production they load from a versioned file.
2. **Line 13.** An unknown country stops the plan. Silence would read as no duty.
3. **Line 15.** What the tool does decides the duty, not the country alone.

Consultation turns on what the tool does and where the people are. Keep the rules as data the lawyers own, and fail loudly on a country nobody has assessed.

Recap card

- **UK consultation sources** ICO monitoring workers guidance, Article 35(9) views in a DPIA, and any union or ICE agreement.
- **Works council rights over monitoring tools** Germany: co-determination. France: CSE consultation before new technology. Netherlands: consent right.

- **EU AI Act and employers** Inform workers' representatives before using a high-risk AI system. Those obligations now apply from 2 December 2027.
- **What decides a consultation duty?** What the tool does, and where the affected people work. Keep the rules as data the lawyers own.

Practice

Exercise 1. Multiple choice (level 1)

Where does a duty to consult works councils about a people analytics tool come from?

- a) Employment law in each country, alongside data protection law
- b) Only from UK GDPR
- c) Only from the EU AI Act
- d) From the software vendor's terms

Exercise 2. Multiple choice (level 2)

A UK employer with no recognised union plans to monitor how often staff open the learning platform. What should it do about consultation?

- a) Consult workers before monitoring, and record their views in the DPIA
- b) Nothing, because the UK has no works council law
- c) Ask each worker for consent instead
- d) Wait until a worker complains

Why?

- r1) ICO guidance expects consultation before monitoring, and Article 35(9) asks for data subjects' views where appropriate.
- r2) UK law gives every workforce a works council with a veto.

Exercise 3. Fill the gap (level 2)

Complete the right each works council holds over a monitoring tool.

```
Germany: works council _____(1) over systems able to monitor behaviour or
    performance.
France: the _____(2) must be consulted before new technology goes live.
Netherlands: works council _____(3) right over personnel monitoring
    systems.
```

Exercise 4. Write the function (level 3)

Write `consult_before_go_live(sites: list[str], features: set[str], rules: dict[str, dict]) -> list[tuple[str, str]]`.

`sites` lists the country codes where affected employees work, possibly with repeats. `features` names what the tool does, such as `"monitoring"`. `rules` maps a country code to `{"body": str, "triggers": set[str]}`.

Return `(country, body)` for each distinct country whose triggers share at least one feature with the tool, sorted by country. Raise `ValueError` for a country that has no rule.

What you need to know.

`&` on two sets gives the items in both. An empty set is falsy:

```
{"red", "blue"} & {"blue", "green"}   # {"blue"}
bool({"red"} & {"green"})             # False
```

`dict.get(key)` returns `None` for a missing key instead of raising: `{"a": 1}.get("b")` is `None`.

`sorted(set(items))` drops repeats and sorts: `sorted(set(["b", "a", "b"]))` is `["a", "b"]`.

Your code must pass these checks:

- List each country once, sorted by country code.
- Include a country only when its triggers share a feature with the tool.
- Raise ValueError for a country with no rule. Silence would read as no duty.
- A tool with no triggering features needs no consultation entry.

Shape of the answer. The reference solution defines these names. Write the bodies yourself.

```
# The body to consult in each country before go-live.
def consult_before_go_live(
    sites: list[str],
    features: set[str],
    rules: dict[str, dict],
) -> list[tuple[str, str]]: ...
```

Starter code:

```
def consult_before_go_live(sites, features, rules):
    return [(c, rules[c]["body"]) for c in sites]
```

Exercise 5. Architecture design (level 4)

Plan go-live for an attrition-risk model used by managers in the UK, Germany and France.

Options: Before go-live in each country, with time for the works councils' process, After launch, once managers find it useful.

1. When to consult

2. Roll-out
3. Record

Sources

- The ICO published final guidance on monitoring workers on 3 October 2023. It expects employers to consult workers and their representatives before monitoring, unless there is a good reason not to. (search-only: Baker McKenzie, Cooley and HFW summaries of the ICO guidance, seen through search results, November 2026.)
- UK GDPR Article 35(9): where appropriate, the controller shall seek the views of data subjects or their representatives on the intended processing. (verified: https://www.legislation.gov.uk/eur/2016/679/article/35, checked 7 November 2026.)
- Since 6 April 2020, a request for information and consultation arrangements under the ICE Regulations 2004 needs 2% of employees, at least 15 and at most 2,500, in an undertaking with 50 or more employees. The Regulations cover Great Britain. (verified: https://www.legislation.gov.uk/uksi/2004/3426/regulation/7 and schedule 1, checked 7 November 2026.)
- Section 87(1) no. 6 BetrVG gives German works councils co-determination over the introduction and use of technical devices intended to monitor employees' behaviour or performance. (verified: https://www.gesetze-im-internet.de/betrvg/__87.html, checked 7 November 2026.)
- The Federal Labour Court reads section 87(1) no. 6 widely: a device objectively able to monitor is enough. (search-only: Luther, GÖRG and Rödl commentary, seen through search results, November 2026.)
- French courts (Nanterre, 14 February 2025; Créteil, 15 July 2025) suspended AI tools deployed before the CSE was consulted under article L2312-8 of the Code du travail. (search-only: CMS and CFDT reports of the rulings, seen through search results, November 2026.)
- Article 27(1)(k) and (l) of the Dutch Works Councils Act give the works council a consent right over rules on processing employee personal data and over personnel monitoring systems. (search-only: Rendement and Responsible AI Platform summaries, seen through search results, November 2026.)
- AI Act Article 26(7) requires deployers who are employers to inform workers' representatives and affected workers before using a high-risk AI system at the workplace. The Digital Omnibus on AI, Regulation (EU)

2026/1744, moved the Annex III high-risk obligations to 2 December 2027. (verified: Regulation (EU) 2024/1689 Article 26(7) and Regulation (EU) 2026/1744 of 8 July 2026 (OJ L, 24 July 2026), recital on dates of application, on eur-lex.europa.eu, checked 7 November 2026.)

Track E best-practice checklist

☐ Treat every talent attribute as personal data. Flag special category data, including what a model infers.

☐ Every use of personal data has a lawful basis. Every use of special category data also has an Article 9 condition.

☐ Employers rarely rely on consent. Record a legitimate interests assessment when you use legitimate interests.

☐ Keep an appropriate policy document for the employment and substantial public interest conditions.

☐ Screen every new use of people data for a DPIA. Large-scale special category data always needs one.

☐ Govern with a frame everyone shares. Map each knowledge area to the talent domains, with an owner.

☐ Score maturity with evidence, per knowledge area and domain. Never average a gap away.

☐ Run the three-step test on every flow that leaves the UK, access included. Adequacy first, then a safeguard with a transfer risk assessment.

☐ Consult works councils and workers before go-live wherever a tool monitors people. The rules differ by country.

☐ The legal team and the data protection officer decide on compliance. These lessons teach you to ask the right questions.

Appendix: solutions and answer keys

Attempt each exercise before you read its solution. Track D answer keys are here too.

E3-L1 Restricted transfers, when people data leaves the UK

E3-L1 exercise 1

Hints. (1) Run the three steps on each option. (2) Step 3 asks whether the receiver is a separate legal person. (3) A sister company is a separate legal person.

Answer. a) A UK company sends appraisal data to its sister company in India

A sister company abroad is a separate legal person outside the UK, so all three steps answer yes.

Common wrong answers.

- `b`: A branch is part of the same legal person, so step 3 of the test fails.
- `c`: Nothing leaves the UK.
- `d`: Deletion sends nothing anywhere.

E3-L1 exercise 2

Hints. (1) Does a transfer need a copy? (2) Who receives the data: your company or another one? (3) Access plus a separate legal person abroad.

Answer. a) Yes Because: r1) Making data available to a separate legal person abroad initiates a transfer, even without a copy.

Granting access is how you initiate the transfer, and the group company is a separate legal person outside the UK.

Common wrong answers.

- `b`: Access counts. You initiate the transfer when you make the data available.
- `a|r2`: Right answer, wrong reason. Your own employee travelling abroad is not a separate legal person. The group company is.

E3-L1 exercise 3

Hints. (1) The first route is a decision about a country. (2) The second route is a contract plus a check. (3) `Adequacy`, `safeguards`, `Exceptions`.

Answer.

```
1. Adequacy regulations: the UK has recognised the destination.
2. Appropriate safeguards, such as the IDTA, with protection not
   materially lower than in the UK.
3. Exceptions, narrow and for occasional transfers.
```

Adequacy, appropriate safeguards, or a narrow exception. Every restricted transfer needs one.

Common wrong answers.

- g3 = `Consent`: Consent is one narrow exception, and it rarely works for employees. The route is called exceptions.

E3-L1 exercise 4

Hints. (1) The three-step test comes first, in its own order. (2) A route only matters once the transfer is restricted. (3) Record last, with every answer.

Answer.

1. Check that UK GDPR applies to the processing
2. Check whether you send the data or make it available outside the UK
3. Check whether the receiver is a separate legal person
4. Choose a route: adequacy, safeguards or an exception
5. Record each answer and the route in the data flow register

The three steps in order, then the route, then a record of each answer and the route.

Common wrong answers.

- Choose a route only after the test shows the transfer is restricted.
- The register needs the route too, so choose it before you record.

E3-L1 exercise 5

Hints. (1) Does access count? (2) Who is the separate legal person? (3) Which route does not depend on employee consent?

Answer.

- Access abroad counts, so test the whole flow, not only file copies.
- Step 3 turns on the legal entity, not the group's brand.
- Use adequacy or a safeguard. Consent from employees is rarely freely given.

Test the flow with access included, name the receiving entity, then use adequacy or a safeguard.

Common wrong answers.

- test = `copies`: Read access from abroad is a transfer too.
- entity = `group`: A group is several legal persons. Step 3 asks about the receiving entity.
- route = `consent`: Employees can rarely refuse an employer freely, so consent is a weak route.

E3-L2 Choosing a transfer mechanism and the transfer risk assessment

E3-L2 exercise 1

Hints. (1) Which route comes first? (2) What does adequacy mean for the destination? (3) Adequacy is enough on its own.

Answer. a) Nothing more for the transfer itself

Adequacy regulations cover the transfer. The rest of UK GDPR, such as a lawful basis, still applies to the processing.

Common wrong answers.

- `b`: Safeguards and a TRA are for destinations without adequacy.
- `c`: Consent is a narrow exception, and adequacy makes it unnecessary.
- `d`: Adequacy regulations need no approval case by case.

E3-L2 exercise 2

Hints. (1) Which option reuses what the group already signs? (2) Does any safeguard skip the TRA? (3) The UK Addendum, with a TRA.

Answer. a) The UK Addendum Because: r1) The Addendum extends the EU clauses the group already uses to UK data.

The Addendum adds UK terms to the EU clauses. A TRA is still required.

Common wrong answers.

- `c`: The EU clauses alone do not cover transfers under UK GDPR. The Addendum adapts them.
- `b`: Consent is a narrow exception, rarely valid for employees.
- `d`: Exceptions suit occasional transfers, not regular group flows.
- `a|r2`: Right safeguard, wrong reason. Every safeguard still needs a TRA.

E3-L2 exercise 3

Hints. (1) Check the routes in order: adequacy, then the safeguard, then the assessment. (2) Use `is None` for the missing assessment, so `False` still means failed. (3) Keep the three safeguard names in a `frozenset` constant.

Answer.

```python
SAFEGUARDS = frozenset({"IDTA", "Addendum", "BCR"})


def transfer_route(adequate: bool, safeguard: str | None, tra_passed: bool | None) -> str:
    """The route for a restricted transfer.

    Args:
        adequate: True if UK adequacy regulations cover the destination.
        safeguard: "IDTA", "Addendum", "BCR", or None if there is none.
        tra_passed: The transfer risk assessment result, or None if not done.

    Returns:
        "adequacy", "safeguards" or "stop".

    Raises:
        ValueError: For an unknown safeguard, or a safeguard with no assessment.
    """
    if adequate:
        return "adequacy"
    if safeguard is None:
        return "stop"
    if safeguard not in SAFEGUARDS:
        raise ValueError(f"unknown safeguard: {safeguard}")
    if tra_passed is None:
        raise ValueError("complete a transfer risk assessment first")
    return "safeguards" if tra_passed else "stop"
```

Adequacy first, then a known safeguard whose assessment exists and passed. A missing assessment raises, because it is not a failure you can act on: it is work not yet done.

E3-L2 exercise 4

Hints. (1) Which route comes first? (2) When is the assessment done: before or after data moves? (3) Protections follow from the assessment.

Answer.

1. Confirm no adequacy regulations cover the destination
2. Choose a safeguard, such as the IDTA
3. Complete the transfer risk assessment against the data protection test

4. Add protections the assessment calls for, such as pseudonymised identifiers
5. Start the transfer and record the route

Rule out adequacy, choose a safeguard, assess, add protections, then transfer and record.

Common wrong answers.

- The assessment comes before the first transfer, not after.
- Check adequacy first. If it applies, you need no safeguard.

E3-L2 exercise 5

Hints. (1) Is a nightly feed occasional? (2) Does a contract replace the assessment? (3) Which option sends less identifiable data?

Answer.

- A regular group feed needs a safeguard. Exceptions are for occasional transfers.
- Every safeguard needs an assessment, and it goes stale when the destination's law changes.
- Pseudonymised IDs with the key in the UK lower the risk the assessment measures.

A safeguard, a live assessment and minimised data make a regular group transfer defensible.

Common wrong answers.

- mechanism = `exception`: A nightly feed is not occasional. Exceptions do not fit.
- tra = `none`: A signed safeguard still needs a transfer risk assessment.
- minimise = `full`: Send only what the purpose needs. Lesson E1-L2 covers data minimisation.

E3-L3 Works councils and consultation before people analytics or AI

E3-L3 exercise 1

Hints. (1) Which kind of law creates works councils? (2) Does it differ by country? (3) Employment law, country by country.

Answer. a) Employment law in each country, alongside data protection law

Works council rights are employment law, and they differ by country. Data protection law adds its own expectations.

Common wrong answers.

- `b`: UK GDPR asks for views in a DPIA, where appropriate. Works council rights come from employment law.
- `c`: The AI Act adds a duty to inform, for high-risk AI. National employment law applies more widely.
- `d`: A vendor cannot create or remove a legal duty to consult.

E3-L3 exercise 2

Hints. (1) What does the ICO expect before monitoring workers? (2) Where do workers' views get recorded? (3) ICO guidance and Article 35(9).

Answer. a) Consult workers before monitoring, and record their views in the DPIA Because: r1) ICO guidance expects consultation before monitoring, and Article 35(9) asks for data subjects' views where appropriate.

The ICO expects consultation before monitoring unless there is good reason not to, and the DPIA records the views.

Common wrong answers.

- `b`: No works council law does not mean no consultation. ICO guidance expects it before monitoring.
- `c`: Consent is a weak basis for employers. Consultation is a different step from a lawful basis.
- `d`: Consultation comes before monitoring starts.
- `a|r2`: Right action, wrong reason. The UK has no general works council duty. The duty here comes from ICO guidance and the DPIA.

E3-L3 exercise 3

Hints. (1) Germany's right means the council decides with the employer. (2) France's works council has a three-letter name. (3) `co-determination`, `CSE`, `consent`.

Answer.

```
Germany: works council co-determination over systems able to monitor
    behaviour or performance.
France: the CSE must be consulted before new technology goes live.
Netherlands: works council consent right over personnel monitoring
    systems.
```

Co-determination in Germany, CSE consultation in France, a consent right in the Netherlands.

Common wrong answers.

- g3 = `veto`: The Dutch right is a consent right: the decision needs the works council's consent before it takes effect.

E3-L3 exercise 4

Hints. (1) Loop over the distinct countries in sorted order. (2) Use `rules.get` and raise when the result `is None`. (3) Add the country only when `rule["triggers"] & features` is not empty.

Answer.

```python
def consult_before_go_live(
    sites: list[str], features: set[str], rules: dict[str, dict]
) -> list[tuple[str, str]]:
    """The body to consult in each country before go-live.

    Args:
        sites: Country codes where affected employees work. Repeats are allowed.
        features: What the tool does, such as "monitoring".
        rules: Country code to {"body": str, "triggers": set[str]}.

    Returns:
        (country, body) for each distinct country the tool triggers, sorted by country.

    Raises:
        ValueError: If a country has no rule.
    """
    plan: list[tuple[str, str]] = []
    for country in sorted(set(sites)):
        rule = rules.get(country)
        if rule is None:
            raise ValueError(f"no consultation rule for {country}")
        if rule["triggers"] & features:
            plan.append((country, rule["body"]))
    return plan
```

Distinct sites in order, a loud failure for any unassessed country, and the tool's features decide each duty.

E3-L3 exercise 5

Hints. (1) Do works council rights apply before or after use? (2) Do the three processes finish on the same day? (3) Where does Article 35(9) put the views you gather?

Answer.

- Consultation comes before use. A French court can suspend a tool deployed before the CSE gives its opinion.
- Each country's process runs at its own pace, so the roll-out follows it.
- The DPIA is where views of data subjects and representatives belong.

Consult before go-live, roll out as each country clears, and keep the views in the DPIA.

Common wrong answers.

- when = `after`: German co-determination and French consultation both come before use.
- rollout = `same_day`: One country's process can take months. A single date forces a launch before some consultations finish.
- record = `email`: The DPIA records views of data subjects and representatives. An inbox is not a record anyone will find.